

Signal Dispatch – Weekly Brief

March 21, 2026

This Week's Signals

Three signals converged this cycle. Here's what moved.

On March 17, the Senate advanced the SAVE Act on a 51-48 procedural vote — and it will die there, nine votes short of cloture. I assess **3%** probability of passage. The bill requiring documentary proof of citizenship to register to vote is legislative theater at the federal level.

But the system the SAVE Act describes is already being built without it.

The Department of Justice has demanded complete voter rolls from at least 44 states and the District of Columbia, suing 24 that refused. At least 12 states — Alaska, Arkansas, Indiana, Kansas, Louisiana, Mississippi, Nebraska, Ohio, South Dakota, Tennessee, Texas, and Wyoming — have handed over full, unredacted voter data. DHS confirmed in September 2025 that it receives and cross-references this data for immigration enforcement.^{[1](#)}

On October 31, 2025, DHS published a Systems of Records Notice retroactively formalizing changes to the SAVE database that had already been implemented five months earlier — adding natural-born U.S. citizens to the system's scope for the first time, integrating Social Security's Numident database, and expanding data sharing with DOJ and state election officials. The Privacy Act requires 30 days advance notice before altering a system of records. DHS gave five months of retroactive notice.^{[2](#)}

I assess **3%** probability the SAVE Act passes. The pipeline it envisions is already operational.

The Pipeline

The conventional framing of the SAVE Act is a voter ID debate: does requiring proof of citizenship suppress legitimate voters or prevent noncitizen voting? That framing misses what is actually happening.

What the bill does. H.R. 22 requires documentary proof of U.S. citizenship — passport, birth certificate plus photo ID, or naturalization certificate — to register for federal elections. It mandates states cross-reference voter rolls against DHS’s SAVE database. It does not grandfather existing registrations: any address change, name change, or party switch triggers re-verification. Section 8(j)(5)(D) mandates that DHS “shall conduct an investigation to determine whether to initiate removal proceedings” when the verification process identifies a noncitizen. No data firewall. No restrictions on what DHS does with voter registration data after receiving it.³

Voter registration becomes an input to the deportation pipeline.

The executive branch is building this system without legislation. DOJ demanded voter rolls, DHS expanded SAVE, and multiple agencies now share data — all under existing authority. The October SORN retroactively legalized changes already in production. Twelve states have already provided complete voter files to the federal government for immigration enforcement purposes.

The behavioral signal is already measurable. A KFF/New York Times survey from 2025 found that 31% of naturalized citizens now fear detention or deportation of themselves or family members — up from 12% in 2023. FWD.us estimates 10.6 million U.S. citizens live with an undocumented immigrant.⁴ For these citizens, voter registration under SAVE creates a data trail in the system being used to find and deport their family members.

This is not a documentation problem. These citizens possess every document required. The barrier is not paperwork — it is a rational calculation that engaging with a government system connected to immigration enforcement puts their household at risk.

Immigration enforcement reduces voter registration propensity by 5% among citizens in mixed-status households — but does not reduce turnout among those already registered.⁵ The effect is on system entry. People who fear enforcement do not stop caring about politics. They stop showing up in government-facing databases.

The noncitizen voting problem the SAVE Act claims to solve is vanishingly small. Kansas implemented documentary proof-of-citizenship requirements from 2013 to 2018. Over 19 years, state officials found at most 39 noncitizens who managed to register. The law blocked 31,000 eligible citizens from registering. That is an 800-to-1 ratio of citizens harmed per noncitizen caught.⁶

Georgia used a different methodology — database verification through SAVE without requiring physical documents at registration. It caught 1,634 noncitizen registration attempts. None voted. The system worked without creating a documentation barrier. The SAVE Act does not follow Georgia's model. It requires both.

The Bigger Picture

The SAVE Act is one piece of a pattern.

The 2026 midterm environment is historically hostile to the incumbent party. Trump's approval sits at 39% (Civiqs, March 19) — underwater for 12 consecutive months. The generic congressional ballot averages D+5.3 (Silver Bulletin). Every president below 40% at midterms has lost 30 or more House seats. Republicans hold 220-215.

The documentation barrier cuts across party lines in ways neither side fully grasps. A CDCE/Brennan Center survey of 2,386 citizens found 9.1% — 21.3 million Americans — lack ready access to proof-of-citizenship documents. The partisan breakdown: 13% of Independents, 10% of Democrats, and 7% of Republicans lack ready access.

Eight of the ten congressional districts with the lowest passport possession rates are represented by Republicans, concentrated in the rural South. Sixty-two percent of adults in evangelical hubs lack valid passports.⁷

The SAVE Act is a shotgun, not a scalpel. Both coalitions bleed.

But the fear channel is directional. The documentation barrier is bipartisan. The fear of immigration enforcement is not. It concentrates in naturalized citizen communities, mixed-status households, and neighborhoods where ICE enforcement has been visible. These populations skew — though not as heavily as they once did — toward Democratic registration.

The 2024 election saw an 18-point swing: naturalized citizens split 51-47 Harris over Trump, compared to 59-38 Biden over Trump in 2020. The assumption that naturalized citizens are a reliable Democratic bloc is no longer supported by data. But the fear of engaging with government systems connected to enforcement does not require a party affiliation. It requires proximity to risk.

Fifteen states have introduced proof-of-citizenship bills in the 2025-2026 legislative sessions. Governor Sununu signed New Hampshire's HB 1569 into law. It is in effect and under federal trial — closing briefs submitted March 5, ruling expected before the September primary. No injunction has been issued. The law is live. Wyoming's HB 156 takes effect July 1. Florida signed but delayed implementation to 2027. South Dakota and Utah have bills pending before the 2026 midterms.

New Hampshire is the only state where an active DPOC law intersects with a competitive federal race for 2026. NH has 80,811 naturalized citizens, an estimated 44,000 same-day registration voters at midterms who will need physical documents at the polls, and a law that is currently in effect with no court blocking it. The trial outcome is the variable.

Probability Updates

New assessment: Federal SAVE Act becomes law before November 2026 - Initial: **3%** - Basis: 60-vote Senate threshold, nine votes short, no reconciliation pathway, Trump's unrelated amendment demands reduce passage probability. No prediction market lists a SAVE Act passage contract. - Resolution: H.R. 22 signed into law by election day 2026

New assessment: NH HB 1569 in effect for November 2026 election - Initial: **40%** - Basis: Trial concluded, briefs in, Judge Elliott deliberating. Kansas and Arizona precedents favor plaintiffs, but current federal judiciary is more conservative. No injunction issued — law is currently in effect. - Resolution: Law not enjoined by November 2026 general election

New assessment: Republicans retain House majority after 2026 midterms - Initial: **15%** - Basis: Trump at 39% approval with D+5.3 generic ballot places this in the zone of 20-37 seat losses historically. Republicans hold 220-215. Even the low end of that range flips the chamber. Structural advantages (redistricting, incumbency) provide some buffer. - Resolution: 218+ Republican seats certified after 2026 midterms

New assessment: DPOC laws enacted in 3+ additional states by end of 2026 - Initial: **55%** - Basis: Florida signed (2027 effective). South Dakota and Utah pending. Michigan ballot initiative. Fifteen states have active bills. Political incentive is high for Republican-controlled legislatures. - Resolution: Three or more states beyond current NH, WY, LA enact DPOC by December 31, 2026

I trade this. Full track record and methodology at signalDSP.substack.com.

What to Watch

NH HB 1569 ruling. Judge Elliott's decision is the single highest-impact binary event for DPOC and 2026. A ruling blocking the law removes the only competitive-state DPOC implementation. A ruling upholding it creates the test case and accelerates state-level adoption. Expected before September 2026 primary.

DOJ voter roll litigation. Twenty-four states and D.C. are being sued for refusing to provide voter data. Court rulings on these cases determine whether the voter-roll-to-enforcement pipeline has legal backing or faces judicial resistance. Watch for the first district court ruling.

State DPOC bill movement. South Dakota and Utah bills could pass before 2026 midterms. Neither has competitive federal races, but enactment expands the precedent base and provides implementation data. Florida's 2027 effective date means no 2026 impact but massive 2028 consequences (4.4 million naturalized citizens).

Naturalized citizen registration rates. CPS data for 2024 already shows a 9.7 percentage point turnout gap between naturalized and native-born citizens. If state-level voter registration data for the first half of 2026 shows declining naturalized citizen registration in DPOC states versus non-DPOC states, that is direct evidence of the chilling effect operating in real time.

ICE enforcement near registration infrastructure. Reports of enforcement actions near voter registration offices, DMVs, or government buildings where registration occurs would amplify the fear channel. The rescission of sensitive locations policy removed the formal barrier to such actions.

Data Appendix

For paid subscribers.

Documentation Gap by Party Affiliation

Affiliation	Lack Ready Access	No Documents at All
Independent	13%	4%
Democrat	10%	2%
Republican	7%	1%

Source: CDCE/Brennan Center/SSRS survey, 2023. n=2,386 U.S. citizens 18+.

Naturalized Citizen Concentration in Competitive States

State	Naturalized Citizens	Share of Adult Citizen Pop	2022 Senate Margin
Arizona	892,963	13.6%	Kelly +137K
Georgia	1,091,821	11.6%	Warnock +93K
North Carolina	854,207	9.4%	Budd +179K
Michigan	657,201	7.7%	Stabenow +269K
Nevada	573,682	8.5%	Cortez Masto +26K
New Hampshire	80,811	5.9%	Hassan +14K

Source: Census ACS 5-Year 2023 estimates.

CPS Turnout Gap by Citizenship Status (2024)

Status	Turnout Rate	Gap vs. Native-Born
Native-born	77.6%	–
Native-born abroad	72.8%	-4.8pp
Naturalized	67.9%	-9.7pp
Native-born territory	56.7%	-20.9pp

Source: CPS Voting and Registration Supplement, November 2024.

SAVE Act Data Flow

```
Citizen registers to vote
|
State submits to DHS SAVE database [Section 8(j)(4)(A)]
|
DHS cross-references: ATS, TECS, SEVIS, Numident
|
If flagged: DHS "shall investigate for removal proceedings" [Section 8(j)(5)
(D)]
|
No data firewall. No restrictions on secondary use.
```

DOJ Voter Roll Demand Status

Category	Count
States receiving demands	44+
States + D.C. sued for refusal	24 + D.C.
States that complied with full data	12
States with litigation pending	24+

Sources: Brennan Center tracker, Democracy Docket, AP/Stateline reporting.

Signal Dispatch delivers structured intelligence with explicit probabilities. Track record and methodology at signaldsp.substack.com.

Next issue: SD #10 – Deep Dive: “The Shotgun.” Full quantitative analysis of SAVE Act partisan impact by congressional district, historical precedent modeling, fear channel depth study, and swarm simulation results. The data behind this brief.

1. DHS spokesperson confirmed to Democracy Docket, September 11, 2025: “This collaboration with the DOJ will lawfully and critically enable DHS to prevent illegal aliens from corrupting our republic’s democratic process.”^[?]
2. EPIC and 15 civil liberties organizations filed formal objections. Maryland led a multistate attorney general comment letter. Federal Register citation: 90 Fed. Reg. 48948.^[?]
3. I have not seen Section 8(j)(5)(D) covered in mainstream reporting on the SAVE Act. The enforcement mandate is in the bill text (GovTrack: H.R. 22, 119th Congress). The Campaign Legal Center confirmed: “the SAVE America Act places no restrictions on what the federal government can do with the sensitive data once DHS receives it.”^[?]
4. FWD.us analysis of American Community Survey data (2021). Cross-validated by Center for Migration Studies and Center for American Progress using independent ACS-derived methodologies. The 2021 figure is likely an undercount — Pew estimates the unauthorized population has grown from ~11 million to ~14 million since 2021.^[?]
5. Amuedo-Dorantes and Lopez (2017), “Interior Immigration Enforcement and Political Participation of U.S. Citizens in Mixed-Status Households,” *Demography* 54(6): 2223-2247. The same study found that lower registration was accompanied by greater civic volunteering — suggesting disengagement from government-facing systems specifically, not political apathy.^[?]
6. *Fish v. Kobach*, 10th Circuit affirmed, Supreme Court declined certiorari. The presiding judge ordered Secretary of State Kris Kobach to complete continuing legal education courses — an extraordinary sanction for a sitting official.^[?]
7. National Redistricting Foundation analysis. Passport application fees start at \$165, creating a de facto financial barrier that correlates with income, which correlates with geography and party affiliation. The relationship between passport possession and partisan lean is inverse: the most Republican districts have the lowest passport rates.^[?]